

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS----- X
ANDREA RAGSDALE AND GEORGE RAGSDALE,

Plaintiffs,

-against-

THE CITY OF NEW YORK, POLICE OFFICER BRYAN
CULLEN, Tax No. 945363000, POLICE OFFICER
ANDREW J. KAMNA, SHIELD NO. 24860, and POLICE
OFFICERS JOHN DOES #1-10 (names and number of
whom are unknown at present), and other unidentified
members of the New York City Police Department,Defendants.
----- X**SUMMONS**

Index No.:

The Basis of Venue is:
Location of IncidentPlaintiff designates Kings
County as the place of trial.**To the above named Defendants:**

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiffs' attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
December 12, 2014

Yours, etc.


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DAVID M. HAZAN, ESQ.
Attorney for Plaintiffs
11 Park Place, 10th Floor
New York, New York 10007
(212) 577-2690TO: City of New York, New York City Law Department, 100 Church Street, NY, NY 10007
Police Officer Bryan Cullen, 73rd Precinct,
Police Officer Andrew J. Kamna, 73rd Precinct

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INDEX NO.:

VERIFIED COMPLAINT

JURY TRIAL DEMANDED

Plaintiffs ANDREA RAGSDALE and GEORGE RAGSDALE, by their attorneys, Jacobs
& Hazan, LLP, as and for their Verified Complaint herein, allege upon information and belief as
follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of
defendants' violation of plaintiffs' rights as secured by the Civil Rights Act, 42 U.S.C. Sections
1983 and 1988, and of rights secured by the First, Fourth, Fifth and Fourteenth Amendments to
the United States Constitution, and by the common law and the laws of the State of New York.
On May 3, 2013, at approximately 6:00 a.m., plaintiffs Andrea Ragsdale and George Ragsdale,
while lawfully inside of their apartment located at 338 Blake Avenue, Apartment 3A, Brooklyn,
New York, were subject to an unlawful search, seizure, detention, false imprisonment and false
arrest by the defendant New York City police officers. Thereafter, while at the 73rd Precinct,
plaintiffs were subjected to unconstitutional searches, having their photographs taken and being
fingerprinted by the defendant New York City police officers. Plaintiffs were deprived of their
constitutional and common law rights when the individual defendants unlawfully searched,
confined, caused the unjustifiable arrest and detention of, and unlawfully searched plaintiffs in
violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution.

PARTIES

2. Plaintiff ANDREA RAGSDALE is a resident of the County of Kings, State of
New York.
3. Plaintiff GEORGE RAGSDALE is a resident of the County of Kings, State of
New York.

4. Police Officer BRYAN CULLEN, Tax No. 945363000, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

5. Police Officer BRYAN CULLEN, Tax No. 945363000, was at all times relevant herein assigned to the 73rd Precinct.

6. Police Officer BRYAN CULLEN, Tax No. 945363000 is being sued in his individual and official capacity.

7. Police Officer ANDREW J. KAMNA, Shield No. 24860, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

8. Police Officer ANDREW J. KAMNA, Shield No. 24860, is and was at all times relevant herein, assigned to the 73rd Precinct.

9. Police Officer ANDREW J. KAMNA, Shield No. 24860 is being sued in his individual and official capacity.

10. New York City Police Officers JOHN DOES #1-10 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

11. Police Officers JOHN DOES #1-10 are being sued in their individual and official capacities.

12. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

13. At all times relevant hereto, defendant CITY OF NEW YORK, operated, maintained managed, supervised and controlled the New York City Police Department ("NYPD") as part of and in conjunction with its municipal function.

14. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

15. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

16. Plaintiff sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

17. On May 3, 2013, at approximately 6:00 a.m., plaintiffs Andrea Ragsdale and George Ragsdale were lawfully present inside of their apartment located at 338 Blake Avenue, Apartment 3A, Brooklyn, New York, when the individually named defendant police officers forcefully and unlawfully entered their apartment without probable cause or any legal justification.

18. The defendant police officers broke down the front door of plaintiffs' apartment, without cause or legal justification.

19. Upon unlawfully entering the apartment defendants screamed at plaintiffs in an unreasonable, unnecessary, extremely frightening and threatening manner.

20. The defendant officers placed George Ragsdale in handcuffs against his will, and without probable cause or any legal justification.

21. The defendant police officers pointed a gun directly at plaintiff Andrea Ragsdale's head and they confined her in her bedroom while two defendant police officers stood watch over her.

22. The defendant police officers immediately went to plaintiffs' son's bedroom and focused their search in his bedroom and the officers told plaintiffs that their son was the subject of their search and that plaintiffs were not being investigated by the officers and were not suspected of committing any crimes.

23. Plaintiff Andrea Ragsdale, a 50 year woman with no criminal history was terrified, as she had never before experienced police officers raiding her home, nor had she ever had a loaded gun pointed at her head before.

24. On May 3, 2013 plaintiff Andrea Ragsdale was recovering from open heart surgery. The entire experience of the defendant police officers raiding her home was very frightening and stressful for plaintiff Andrea Ragsdale, and the stress caused plaintiff Andrea Ragsdale's blood pressure to elevate to a dangerous level. Plaintiff Andrea Ragsdale developed a severe headache, her mouth became very dry and she became very thirsty.

25. An ambulance was called to 338 Blake Avenue and plaintiff Andrea Ragsdale was transported to Brookdale Hospital via ambulance to receive treatment for her cardiac

condition. The ambulance arrived at plaintiffs' home at approximately 6:20 a.m. and plaintiff arrived at the hospital via ambulance at approximately 7:11 a.m.

26. Plaintiff Andrea Ragsdale was placed in handcuffs, without probable cause or any legal justification, before she was transported to the hospital.

27. Plaintiff Andrea Ragsdale received medical treatment for her condition at the hospital and was released from the hospital into police custody at approximately 10:00 a.m. on May 3, 2013.

28. Plaintiff George Ragsdale, husband of Andrea Ragsdale, was questioned by the defendant officers about why his son, Rameel, was not home. The officers told plaintiff George Ragsdale that they were in the apartment looking for Rameel.

29. Although the defendant police officers lacked probable cause to believe plaintiff George Ragsdale committed a crime, the officers transported him from his home in handcuffs to a police van that was parked outside his home.

30. The defendant police officers refused to tell plaintiff George Ragsdale where his wife was taken and whether his wife was physically well.

31. At no time were any illegal guns, drugs or contraband found in plaintiffs' bedroom or a common area of plaintiffs' apartment, or on either plaintiffs' person, or in either plaintiffs' possession, custody, or control.

32. At no time did plaintiffs violate any law, commit any crime or violate the law in any way.

33. Defendants did not have an objective factual basis to believe either plaintiff committed a crime or violated the law in any way.

34. Nevertheless, the individually named defendants handcuffed and falsely arrested plaintiffs, without probable cause to arrest them.

35. Defendants transported plaintiff George Ragsdale from his home to the 73rd precinct against his will for arrest processing.

36. Upon arrival at the 73rd Precinct, plaintiff George Ragsdale was forced to undergo an intrusive search of his person, he was placed in a holding cell with approximately 10-15 other individuals, and he was fingerprinted and photographed.

37. Plaintiff Andrea Ragsdale was transported from Brookdale Hospital to the 73rd Precinct where she was placed in a holding cell with a woman who smelled as if she had not bathed in a very long time, appeared mentally ill, and who took up the entire bench in the holding cell, forcing plaintiff Andrea Ragsdale to stand on her feet the entire time she remained in the holding cell.

38. Plaintiff Andrea Ragsdale was photographed and fingerprinted while she was detained at the 73rd Precinct.

39. Plaintiffs George Ragsdale learned that his wife's cardiac condition was successfully treated and that she was physically okay at approximately 10:30 p.m. on May 3, 2014 when plaintiffs were transported together from the 73rd Precinct to Kings County Central Booking.

40. Plaintiffs George Ragsdale and Andrea Ragsdale were both detained in holding cells at Kings County Central Booking for several hours.

41. At approximately 2:00 a.m. on May 4, 2013, plaintiff's names were called by an corrections officer and both plaintiffs were released from Central Booking without being charged with a crime.

42. When the Brooklyn District Attorney's Office reviewed the objective evidence provided to the D.A.'s Office by the defendant police officers that the officers used as a basis for purportedly establishing "probable cause" to arrest plaintiffs, the Brooklyn District Attorney's Office concluded that the evidence did not establish probable cause to charge either plaintiff with a crime. The Brooklyn District Attorney's Office concluded that "there was insufficient evidence to prosecute" plaintiffs and that there was "no basis" for charging them with any crimes.

43. The other individually named defendant police officers that were present at the scene of the incident failed to intervene to prevent the unlawful search and detention of plaintiffs, even though they knew or should have known that plaintiffs were unlawfully arrested, without probable cause.

44. Some of the police officer defendants observed the violation of plaintiffs' rights under the Constitution of the United States and New York State Law and did nothing to prevent the unjustifiable search and seizure of plaintiffs.

45. Plaintiffs exited through the rear door at Central Booking, walked three blocks to a subway station and rode the subway back to their home.

46. Plaintiffs' home was a mess, as it was completely torn apart by the police officers when they searched the apartment. Plaintiffs were forced to spend an enormous amount of time for several weeks after the incident, cleaning their apartment and fixing the disaster that the officers created when they searched the apartment.

47. The unlawful search, false arrest, and false imprisonment of plaintiffs by the individually named defendants caused plaintiffs to sustain physical, psychological, emotional, and economic trauma.

48. At the time of the incident plaintiff Andrea Ragsdale worked for the New York City Department of Education.

49. When plaintiff Andrea Ragsdale returned to work, her supervisor was extremely critical and judgmental of plaintiff and caused plaintiff to break down crying.

50. Plaintiff Andrea Ragsdale was suspended from her job with the Department of Education for twenty-one (21) days without pay.

51. Plaintiff George Ragsdale spent a large portion of the time that he was unlawfully detained by defendants worrying about his wife's medical condition, and becoming angry about how the officers treated his wife in such an aggressive manner that she required hospitalization to treat her cardiac condition.

52. Plaintiff George Ragsdale was licensed with New York State to be a Security Guard at the time of the incident, but his security guard license was automatically suspended when plaintiff George Ragsdale was arrested, and his license was not reinstated until July, 2013.

53. There is a policy, practice or custom within the New York City Police Department, wherein New York City Police Officers search an apartment or home, find illegal contraband is in the possession, custody or control of a particular occupant of the apartment, but arrest all occupants of the apartment/home even though only one of the occupants has constructive possession over an illegal substance and the officers lack probable cause to arrest anyone in the apartment, except for the one individual that possesses the illegal contraband.

54. As a result of defendant City of New York and the New York City Police Department's deliberate indifference about the fact that New York City Police Officers routinely arrest all occupants of an apartment that was searched pursuant to a search warrant, when there is reasonable suspicion and/or probable cause to arrest only one of the apartment's occupants, and there is a pattern, policy, custom or practice of New York City Police Officers arresting all occupants of an apartment that was searched pursuant to a search warrant, when there is reasonable suspicion and/or probable cause to arrest only one of the apartment's occupants.

55. This policy and practice directly caused the unconstitutional arrest of plaintiffs, as the officers did not have a factual basis to believe either plaintiff possessed illegal drugs, weapons or contraband when they arrested them.

FIRST CAUSE OF ACTION

Violation of Plaintiffs' Fourth, Fifth Amendment and Fourteenth Amendment Rights

56. The plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked 1 through 55 with the same force and effect as if more fully set forth at length herein.

57. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiffs to be unlawfully seized, unlawfully searched, and falsely arrested and imprisoned, without reasonable suspicion or probable cause in violation of plaintiffs' right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

58. As a result of the aforementioned conduct of defendants, plaintiffs sustained injuries, including but not limited to emotional, psychological and economic injuries.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

59. The plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked 1 through 58 with the same force and effect as if more fully set forth at length herein.

60. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiffs and, in fact, confined plaintiffs, and plaintiffs were conscious of the confinement. In addition, plaintiffs did not consent to the confinement and the confinement was not otherwise privileged.

61. As a direct and proximate result of such acts, defendants deprived plaintiffs of their rights under the laws of the State of New York and the United States Constitution.

62. As a result of the aforementioned conduct of defendants, plaintiffs sustained injuries, including but not limited to emotional and psychological injuries.

THIRD CAUSE OF ACTION

Unlawful Search

63. The plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked 1 through 62 with the same force and effect as if more fully set forth at length herein.

64. The illegal approach, pursuit, stop and search employed by defendants herein terminated plaintiffs' freedom of movement through means intentionally applied.

65. Defendants lacked probable cause to search plaintiffs.

66. As a direct and proximate result of such acts, defendants deprived plaintiffs of their rights under the laws of the State of New York.

67. As a result of the aforementioned conduct of defendants, plaintiffssustained injuries, including but not limited to emotional and psychological injuries.

FOURTH CAUSE OF ACTION

Failure to Intervene

68. The plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked 1 through 67 with the same force and effect as if more fully set forth at length herein.

69. Defendants had an affirmative duty to intervene on behalf of plaintiffs, whose constitutional rights were being violated in their presence by other officers.

70. Defendants failed to intervene to prevent the unlawful conduct described herein.

71. As a result of the foregoing, plaintiffs' liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

FIFTH CAUSE OF ACTION

Municipal Liability Under 42 U.S.C. § 1983

72. The plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked 1 through 71 with the same force and effect as if more fully set forth at length herein.

73. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of defendant City of New York, which is forbidden by the Constitution of the United States.

74. The aforementioned customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department included, but were not limited to, arresting all occupants of a home/apartment that is searched pursuant to a search warrant even though illegal contraband is only found in the possession, custody or control of certain specific occupants of the apartment/home and even though the officers lack a specific, articulable factual basis supporting probable cause to believe all of the apartment's occupants arrested committed a crime or possessed the illegal contraband found in the apartment/home, as well as inadequate screening, hiring, retaining, training, and supervising its employees with respect to this issue.

Additionally, the aforementioned customs, policies, usages, procedures and rules of defendant City of New York and the New York City Police Department, included but were not limited to,

unlawfully arresting individuals, without probable cause or legal justification for allegedly constructive possession of an illegal substance.

75. The aforementioned customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the moving force behind the violation of plaintiffs' rights as described herein. As a result of the failure of defendant City of New York and the New York City Police Department to properly recruit, screen, train, discipline, and supervise its officers, including the individual defendants, defendant City of New York has tacitly authorized, ratified, and has been deliberately indifferent to, the acts and conduct complained of herein.

76. The foregoing customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the moving force behind the Constitutional violations suffered by plaintiffs as alleged herein.

77. The foregoing customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by plaintiffs as alleged herein.

78. As a result of the foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department, plaintiffs were falsely arrested.

79. Defendants collectively and individually, while acting under color of state law were directly and actively involved in violating plaintiff's constitutional rights.

JURY DEMAND

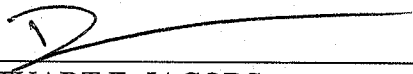
80. Plaintiffs hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiffs Andrea Ragsdale and George Ragsdale demand judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees, inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiffs recover the cost of the suit herein, including reasonable attorneys' fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
 December 12, 2014

By: _____

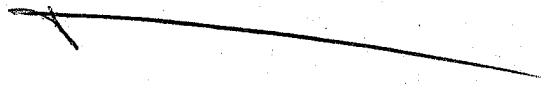

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ATTORNEY'S VERIFICATION

DAVID M. HAZAN, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, LLP**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiffs is that Plaintiffs do not reside in the county wherein I maintain my office.

DATED: New York, New York
December 12, 2014



DAVID M. HAZAN